"verified certificate" from the Contractors State License Board referred to in Business and Professions Code, section 7031. The certificate indicates it covers the period from January 1, 2020 through April 17, 2025 (the date on which the certification was made). The document contains no indication that the license was suspended at any point in that period. The form by which the certificate was requested appears on the fifth page of the same exhibit to the Appendix of Evidence (Exhibit 7) and states that the verified history on the certified license history form contains "the standing of the license at all times during the period covered by the certificate." As set forth in the motion, this verified certificate creates a "rebuttable presumption" that Fluence was properly licensed and shifts the burden to Diablo to rebut the presumption. (See Cal. Evid. Code, § 602.)

Diablo's "disputes," as to many of the facts offered by Fluence are not supported by evidence. Many are further not material to the issues here. Diablo's "disputes," as to facts reflected on the verified certificate, do not cite any additional evidence and simply argue that the certificate does not support the facts for which it is offered. (See SSUMF Fact Nos. 42-44.) This is essentially an argument that Fluence fails to meet its initial burden on the motion. The Court disagrees. The certificate, which contains no statements that the license was ever suspended, is sufficient for Fluence to meet its initial burden to demonstrate licensure from January 1, 2020 through April 17, 2025.

With respect to Diablo's burden to further demonstrate material factual disputes, Diablo points to the various letters apparently issued by the Contractors State License Board concerning purported license suspensions, as well as a purported screenshot of the Board's website showing a suspension on November 10, 2023. (See Additional Material Fact Nos. 66-73; Wallach Decl., Ex. 4.) The evidence does not amount to a material factual dispute. These documents reflect snapshots specific to the moment in time that they were created and do not take into account any information later acquired by the CSLB.

The notices and internet screenshot, in light of the reinstatement letters, are immaterial and do not contradict the legal effect of the verified certificate. (See, e.g., AOE Ex. 6, p. 25 [Notice of License Reinstatement at page 202 of AOE pdf].) Diablo, for its part, has conceded there was no lapse in insurance coverage. Its own evidence indicates delays related to the submission of *proof* of coverage, not any actual deficiency in coverage. These delays in proof could be attributable to third parties and do not violate any particular statutory time-frame for submitting proof and therefore maintaining licensure. For example, Exhibit 5 to the Wallach Declaration suggests the CSLB took time in administrative "processing" / "updat[ing]," and that the insurance broker could have been responsible for the delay in mailing any certificate of coverage. (See Wallach Decl., Ex. 5, p. 2.)

The relevant statutory provision underlying the "notices of suspension" is Business and Professions Code, section 7071.19, which provides, in subdivision (a), that an LLC must "maintain" liability insurance. Subdivision (g) requires a licensee to submit a Certificate of Liability Insurance and requires the insurer to report the "name, license number, policy number, dates that coverage is scheduled to commence and lapse, the date and amount of any payment of claims, and cancellation date if applicable" on the licensee's policy.

None of the requirements in Business and Professions Code, section 7071.19 mention suspension or a timeframe during which the Certificate of Liability must be submitted. Accordingly, the notices relied on by Diablo, and upon which Diablo rests its disgorgement claims, do not rebut the presumption created by the verified certificate as a matter of law.

3. 9:00 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: FILE FIRST AMENDED COMPLAINT**
FILED BY: MONTOYA, ANGEL
****TENTATIVE RULING:****

Plaintiff moves for leave to file a First Amended Complaint. Defendant specifically does not oppose filing of the First Amended Complaint attached to the motion. **The motion is granted.** The First Amended Complaint attached to the motion is to be separately filed with the court within ten days after notice of entry of this order.

4. 9:00 AM CASE NUMBER: C24-00861
CASE NAME: NAVY FEDERAL CREDIT UNION VS. FREDERICK MERRIDA
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: NAVY FEDERAL CREDIT UNION
****TENTATIVE RULING:****

Granted. The agreement contained an attorney fee provision, and the amount requested is within the schedule in Local Rule 2.40. There is no opposition.

5. 9:00 AM CASE NUMBER: C24-01376
CASE NAME: XUE XIE VS. SHENG LIN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: LIN, SHENG PING
****TENTATIVE RULING:****

Defendant Sheng Ping Lin's demurrer to Plaintiff Xue Fen Xie's Second Amended Complaint is **sustained without leave to amend as to the second cause of action for constructive trust. The demurrer is otherwise overruled.** Plaintiff shall prepare a proposed order consistent with this ruling and shall serve notice of entry of order.

Background

Plaintiff's Second Amended Complaint (SAC) alleges that in 2021 defendant Sheng Ping Lin told plaintiff Xue Fen Xie that if she paid the mortgage, property taxes, and utilities for the property located at 1115 Ivy Court in El Cerrito, he would add her name to the title. Plaintiff alleges that she relied on defendant's promise and paid the adjustable-rate mortgage from April 2021 through April 2024, in amounts totaling $223,424. Plaintiff alleges that the parties' agreement was later modified to include plaintiff's payment for substantial renovations to the property, including remodeling the kitchen and improving the second floor, at a cost of $179,564. Plaintiff alleges a further modification under which plaintiff agreed to fund the construction of an accessory dwelling unit for $86,600. Plaintiff expended more than $489,588 in total. Plaintiff alleges that in April 2024 defendant told plaintiff that he intended to sell the property, and when plaintiff asked him either to add her to the title or to return her money, he refused.

Based on these allegations, the complaint asserts four causes of action. The first cause of action for breach of contract alleges an oral agreement under which plaintiff would pay mortgage-related expenses and fund improvements in exchange for defendant's promise to add her to the title, and that defendant breached that agreement by refusing to do so or to reimburse her. The second cause of action for constructive trust alleges that defendant continues to hold title to the property and the